HARBOURLIGHT MEDIA

Clearance Guide: Gambling Inducements

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1. What this guide covers

This guide covers betting and gaming copy that pressures viewers to gamble or misleads them about what gambling offers. It is used by the Clearance Executive who reviews the copy, from the first read until the issue is settled, and by Agency Liaisons advising agencies before they submit.

It arises in betting and gaming copy only.

This guide is about what the copy promises and how it pushes viewers to act. Copy aimed at a young audience is an appeal to under-18s, and the Appeal to Under-18s guide covers it; an offer's terms, and whether they are shown, are a price or offer claim.

Whether a campaign's spots may be transmitted is a separate question, settled by the category's own code. This guide is about the copy.

2. How it usually shows up

- urgency, such as bet now before kick-off, get in before the odds change or sign up today and play straight away
- a 'today only' super
- a win shown as the answer to money worries
- a player doubling a stake after a loss, which looks like chasing losses
- a suggestion that skill will beat the odds, or that everyone watching the match is betting

3. What the executive checks

For a possible gambling inducement, the Clearance Executive checks, in this order:

1. List every line and image that urges viewers to gamble now or suggests an offer will be lost if they wait.
2. Check the copy does not present gambling as a way to solve money worries, gain status or win approval.
3. Check that no scene shows chasing losses or gambling beyond a player's means.
4. Check the copy is not misleading about the chance of winning and does not suggest skill will beat the odds.
5. Check the safer gambling message is on screen for the whole of the spot.

4. Evidence to ask for

- the script notes explaining any winning scene
- where the copy says a winner is a real customer, confirmation of it
- the full terms of any offer shown

5. When the copy can be cleared

The copy can be cleared once it no longer pressures viewers to gamble, presents winning realistically and carries the safer gambling message throughout. The usual amendment is to remove the urgency line and any winning montage.

6. What the agency should do

Before submitting, and when answering a query, the agency should:

- Remove lines that urge viewers to bet or play now.
- Show winning as occasional, and gambling as entertainment rather than a way out of money worries.
- Keep the safer gambling message on screen for the whole spot.
- Send script notes for any scene that shows a win.

7. When to ask for a legal review

Ask for a legal review when the agency says a winning scene is real and typical, or when urgency is implied by the images rather than the words.

The Legal Adviser records the review on the campaign, and its view carries more weight than any other note.

8. Recording the outcome

The outcome is recorded in an update on the campaign: the copy amended, the evidence accepted, or the copy cleared as submitted.

The assessment then recommends one of the decisions open for the campaign, and a Clearance Controller decides, as the Advertising Clearance Policy describes. Copy that cannot be cleared is rejected, whatever its spots' results.